

BELLE REALTY OF LAFAYETTE, LLC

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April 29, 2021

- Ryan,
- Attached you will find the following pertaining the HVAC Systems at On The Boulevard Shopping Center:
- 1) Typical Maintenance and Repair Section found in the Lease Agreement dealing with HVAC Units. Section edited to provide only the HVAC part of this section.
 - 2) BLUE = List of Tenants, Unit Number and SQFT.
 - 3) GREEN = Recent replacement of HVAC Systems.
 - 4) ORANGE = Age of HVAC Systems (Butcher skipped one Unit and later attempted to adjust. However, I am unsure if they adjusted correctly so they will be coming back out to confirm).

Section 9.01 - Maintenance, Repairs:

Lessee acknowledges that the Premises is in good order and repair. Lessee shall, at its own expense and at all times, maintain the Premises in good and safe condition, make all necessary repairs and replacements including, but not limited to the heating and air conditioning systems and components thereof serving the Premises, and shall surrender the same at termination hereof, in as good condition as received, normal wear and tear excepted. Lessee shall be responsible for all repairs required, excepting the roof, exterior walls and structural foundation, which shall be maintained by Lessor. Lessee shall also be responsible for keeping at all times areas immediately adjacent to the Premises, such as sidewalks and parking areas, free and clear of trash and other refuse. Lessee shall promptly repair any damage to any part of the building in which the Premises is located in the event such damage is caused by or attributable to the actions or inactions of Lessee, its employees, officers, directors, shareholders, members, partners, representatives, agents, customers, guests, invitees or licensees, to the extent to which such is not covered by insurance under Section 15.01. Notwithstanding the foregoing, the Lessor shall be responsible for the repair and replacement, if necessary, of the heating and air conditioning ("HVAC") system servicing the Premises provided that (i) the Lessee shall pay the first \$750.00 for each repair visit and the first \$750.00 toward the replacement cost of the HVAC system or any component thereof, and (ii) the Lessee maintains, at its own expense, for the full term of this Agreement and any renewal or extensions thereof, a monthly maintenance contract with Butcher Air Conditioning for regular routine maintenance to the HVAC systems and components thereof in the Premises. Further provided, in the event it is determined by the HVAC maintenance provider that the HVAC systems or any component thereof must be replaced and such replacement is made within fifteen (15) days of a repair visit made by such HVAC maintenance provider ("Preceding Repair Visit") (not including a routine maintenance visit pursuant to a monthly maintenance contract), then the amount paid by the Lessee toward the cost of the Preceding Repair Visit shall be credited toward the Lessee's obligation to pay the first \$750.00 toward the replacement cost of the HVAC system. Lessee agrees to hire Butcher Air Conditioning to perform all maintenance, repairs and replacements of the heating and air conditioning systems and components servicing the Premises.

ADDRESS	TENANT	SQFT	HVAC Replacements	BUTCHER HVAC CONTRACTS MONTHLY FILTER PLUS # ____ MAINT CLEAN	AGE OF HVAC SYSTEMS 2020	AGE OF HVAC SYSTEMS 2020	AGE OF HVAC SYSTEMS 2020
101	Vacant / TBD	6800			PKG Unit 2018	PKG Unit 2018	RES Split 2012
103	Pink Paisley	5330	8/26/2020 New HVAC Unit for 103 \$15,000.00	2	PKG Unit 2020	PKG Unit 2011	
105	*****				PKG Unit 2004		
107	Hershey's	1743		2	PKG Unit 1997	PKG Unit 2016	
109	JC Kate	2546		2	PKG Unit 2012		
111	Bella Grace	1690		2	PKG Unit 2008		
113	Graze Acadiana	2606		2	PKG Unit 2008	PKG Unit 2012	
115	Vacant / TBD	2170		2	PKG Unit 2008		
117	The Clothing Loft	2170		2	PKG Unit 2004		
117.5	Victoria Nails	1769		3	PKG Unit 2015		
119	Vacant / TBD	1982			PKG Unit 2016		
119.5	Cat Clinic	1974	11/8/2019 New HVAC Unit \$8673.48		PKG Unit 2019		
121	Lola Pink Fabrics	4865		2	PKG Unit 2014		
123	*****				PKG Unit 1995		
125	Elle Rae Boutique	4273		4	PKG Unit 2016		
127	*****				PKG Unit 2016		
129	Oupac	1789		2	PKG Unit 2015		
131-133	Politics	3179		2	PKG Unit 1996		
135A	Sneaker Politics	3160			RES Split 2007		
135B	*****				RES Split 2007		
137	Vacant / TBD	2053			RES Split 2007		
139	Dealer Track	3834		4	RES Split 2007		
141	*****				RES Split 2007		
143	Franklin Financial	1917		2	RES Split 2007		
145	BLVD Nutrition	1917	4/30/2020 New HVAC Unit for 119.5 \$12,010.68		RES Split 2020		
149	Jason's Deli	4613			COM Split 2016		